

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Bench
Justice Muhammad Hashim Khan Kakar
Justice Salahuddin Panhwar
Justice Ishtiaq Ibrahim

JAIL PETITION NO.178 OF 2025

(Against the judgment dated 22.05.2025 passed by the Lahore High Court, Multan Bench in Crl. Appeal No.622-J/2020 and MR. No.35/2020)

Khuda Bakhsh ... Petitioner

Versus

The State ...Respondent

For the Petitioner	Malik Matee Ullah, ASC
For the State:	Rai Akhtar Hussain, APG Pb.
Assistance:	Mr. Muhammad Subhan Malik (Judicial Law Clerk, SCP)
Date of Hearing:	13.05.2026

JUDGMENT

Salahuddin Panhwar, J. Through this jail petition, the petitioner Khuda Bakhsh has challenged the judgment dated 22.05.2025 passed by the Lahore High Court, Multan Bench, in Criminal Appeal No.622-J of 2020 and Murder Reference No.35 of 2020, whereby his appeal was dismissed, the murder reference was answered in the affirmative, and the convictions and sentences awarded by the learned trial Court under sections 302(b), 324 and 337-F(iii), PPC, were maintained.

2. Briefly stated, the prosecution case, emerging from FIR No.850 of 2019 dated 15.10.2019, registered under sections 302/324, PPC, at Police Station City Shujabad, District Multan, is that on the night between 14/15.10.2019, at about 11:45 p.m., the petitioner, armed with a 30-bore pistol, entered the house of complainant Altaf Bibi and made successive fire shots at his own son Muhammad Imran, daughter Fozia Bibi, and minor grandson Muhammad Madni. All three succumbed to their injuries at the spot. Another son of the petitioner, namely Muhammad Rizwan, sustained firearm injury. The occurrence took place inside the residential house in the presence of family members. After completion of investigation, challan was submitted before the Court of competent jurisdiction. The learned trial Court, upon conclusion of trial, convicted and sentenced the petitioner as follows:

Under section 302(b), PPC:

Sentence of death as ta'zir on three counts for the murder of Muhammad Imran, Fozia Bibi and Muhammad Madni, minor, along with compensation of Rs.3,00,000/- to the legal heirs of each deceased under section 544-A, Cr.P.C., and in default thereof simple imprisonment for six months on each count.

Under section 324, PPC:

Rigorous imprisonment for ten years with fine of Rs.50,000/-, and in default thereof simple imprisonment for three months.

Under section 337-F(iii), PPC:

Rigorous imprisonment for three years as ta'zir with Rs.50,000/- as daman payable to injured Muhammad Rizwan, and in default thereof to be kept in jail till realisation of the amount of daman.

Benefit of section 382-B, Cr.P.C., was extended to the petitioner in respect of the sentences awarded under sections 324 and 337-F(iii), PPC.

3. We have heard learned counsel for the petitioner and learned Additional Prosecutor General for the State, and have examined the record with their assistance. Learned counsel for the petitioner could not point out any material misreading or non-reading of evidence which may justify interference by this Court. The prosecution case rests upon direct ocular evidence furnished by Altaf Bibi complainant (PW-2), Allah Bakhsh (PW-3) and Muhammad Rizwan injured witness (PW-4). Their presence at the place of occurrence was natural and probable. The occurrence took place inside the family house during night hours. Altaf Bibi was the wife of the petitioner and mother / grandmother of the deceased persons; Muhammad Rizwan was an injured witness and son of the petitioner; and Allah Bakhsh was present in the house at the relevant time. In such circumstances, their presence could not be treated as artificial, procured or doubtful.

4. Mere relationship of the witnesses with the deceased persons does not render their testimony suspect. The rule is one of prudence, not rejection. Related witnesses are competent witnesses and where their evidence is confidence-inspiring, consistent on material particulars, and supported by medical and forensic evidence, conviction can safely be maintained on such testimony. In the present case, the witnesses remained consistent on the core features of the prosecution case, namely the time, place, manner of occurrence, identity of the assailant, weapon used, number of victims, and sequence of firing. Nothing favourable to the defence could be extracted from their cross-examination. No plausible reason has been suggested as to why the petitioner's own wife, son and brother-in-law would falsely substitute him for the real culprit, particularly when three members of the family had been murdered and one son had been injured in the same occurrence. In a case of a single accused,

substitution is ordinarily a rare phenomenon; in the present domestic setting, it becomes even more improbable.

5. The medical evidence fully supports the ocular account. Dr. Muhammad Younas Siddiqi (PW-5) conducted the post-mortem examination of Muhammad Madni and Muhammad Imran and noted firearm injuries on vital parts of their bodies. Dr. Anum Shabbir (PW-11) conducted the post-mortem examination of Fozia Bibi and found firearm injuries sufficient in the ordinary course of nature to cause death. Dr. Iqra Hanif (PW-12) medically examined Muhammad Rizwan and noted firearm injury on his person. The seat, nature and timing of the injuries are in complete harmony with the prosecution version. The injury to Muhammad Rizwan further strengthens the prosecution case, for an injured witness carries a built-in assurance of presence at the place of occurrence unless strong reasons exist to disbelieve him. No such reason exists in the present case.

6. The forensic evidence also lends strong corroboration to the prosecution case. Six crime empties of 30-bore pistol were secured from the spot and sent to the Punjab Forensic Science Agency. The report was positive, as the empties were found matched with the 30-bore pistol recovered pursuant to the petitioner's disclosure. This forensic link connects the weapon, the place of occurrence and the petitioner. Thus, the ocular account, medical evidence and forensic evidence converge and leave no reasonable doubt regarding the petitioner's culpability.

7. The delay in reporting the matter to the police is not fatal. The occurrence took place at about 11:45 p.m. and the matter was reported at about 01:10 a.m. The police station was at a distance of about ten miles. The complainant had lost her son, daughter and minor grandson in one occurrence, while another son had received firearm injury. In a state of shock, grief and domestic devastation, some delay in approaching the police is natural. The delay was neither inordinate nor unexplained, nor has it been shown that it was utilised for consultation, deliberation or false implication.

8. The absence of a specifically established motive also does not demolish the prosecution case. Motive is relevant, but where direct ocular evidence is natural, confidence-inspiring and corroborated by medical and forensic evidence, failure to prove motive loses much of its significance. This is not a case of an unknown assailant where motive was required as an identifying link. The petitioner was a close family member, known to all inmates of the house, and the occurrence took place inside the house. In **Muhammad Ashraf and another v. The State**

(PLD 2004 SC 539) and **Muhammad Latif v. The State** (PLD 2008 SC 503), it has been held that absence, weakness or failure to prove motive does not by itself justify withholding the death penalty where the charge is otherwise proved through reliable and confidence-inspiring evidence.

9. We now turn to the question of sentence. Section 302(b), PPC, provides two punishments, namely death or imprisonment for life. The discretion is judicial and must be exercised upon the facts and circumstances of each case. Sentencing in a capital case is not a mechanical exercise. The Court must examine the crime, the criminal, the nature of evidence, the manner of commission, and all circumstances which may aggravate or mitigate the sentence. The ultimate question is whether the case contains any legally recognisable extenuation sufficient to displace the sentence of death.

10. In **Asad Mahmood v. Akhlaq Ahmed and another** (2010 SCMR 868), this Court held that the penalty of death must be imposed where the manner and method of the incident are brutal, horrific, heinous or shocking, and that in a conviction under section 302(b), PPC, death is the normal sentence except where the Court finds mitigating circumstances warranting imposition of a lesser sentence. In **Ahmad Nawaz and another v. The State** (2011 SCMR 593), this Court observed that where the manner and method of the incident are brutal, horrific, heinous, shocking, callous and cold-blooded, the penalty of death must not be withheld. These principles directly apply to the present case, for the petitioner killed three members of his own family, including a minor child, and injured another son by repeated firearm shots inside the family home.

11. The jurisprudence of this Court also recognises that the expression “mitigating circumstances” is not capable of an exhaustive definition. In **Muhammad Sharif v. Muhammad Javed alias Jeeda Tedi** (PLD 1976 SC 452), the phrase was explained to include circumstances such as extreme youth, sudden provocation, influence of an elder and questions of family honour. In **Muhammad Javed and another v. The State and others** (2011 SCMR 1462), this principle was reiterated while emphasising that where a case falls within legally recognised extenuating circumstances, the lesser penalty may be justified. However, such mitigation must arise from the proved facts and cannot be assumed merely because the law provides an alternative sentence.

12. In **Muhammad Ilyas v. The State** (2009 SCMR 1042), a sudden act was treated as a circumstance justifying conversion of death into imprisonment for life. In **Mir Muhammad alias Miro v. The State** (2009

SCMR 1188), benefit of doubt on the question of sentence, coupled with lack of proof of motive, advanced age and continuous incarceration, weighed with the Court. In **Mushtaq and others v. The State** (2012 SCMR 109), absence of personal motive and non-participation in the actual process of killing were considered relevant. In **Iftikhar Mehmood and another v. Qaiser Iftikhar and others** (2011 SCMR 1165), this Court observed that motive, though not sine qua non for proof of murder, may be relevant for determining quantum of sentence; the reduction there rested upon compelling circumstances arising out of religious feelings, hot discussion and exchange of abuses. These cases show that mitigation is fact-sensitive, and that reduction of sentence is justified only where the facts reduce the moral culpability of the offender or create a genuine doubt relevant to punishment.

13. The present case is plainly distinguishable from the above category of cases. The petitioner was not a youthful offender acting under the influence of an elder. The occurrence was not a sudden act, nor was it preceded by grave and sudden provocation. There was no family honour circumstance reducing culpability. The fatal injuries were not uncertain. The petitioner was not a secondary participant or one whose role was confined to facilitation. The occurrence is not shrouded in mystery. There is no circumstance of advanced age, mental incapacity, duress, coercion, or prolonged incarceration sufficient to affect the sentence. On the contrary, the petitioner was the principal and only assailant who fired repeatedly at different members of his own family.

14. Even when tested on the comparative principles stated in **Bachan Singh v. State of Punjab** [1980(2) SCC 684], **Machhi Singh v. State of Punjab** [1984(2) RCR (Criminal) 412], and **Devender Pal Singh v. State of NCT of Delhi** 2002(2) RCR (Criminal) 515, the result is the same. Those authorities require a balance of aggravating and mitigating circumstances, full weight to mitigation, and imposition of death only in the gravest cases of extreme culpability. They also recognise multiple murders, murder of an innocent child, murder of a helpless victim, murder by a person in a dominating position or position of trust, cold-blooded killing without provocation, and crimes enormous in proportion as factors which may justify the extreme penalty. In **Mohan Anna Chavan v. State of Maharashtra** 2008(7) SCC 561, the Supreme Court of India reiterated that undue sympathy in imposing inadequate sentence undermines public confidence in the administration of justice, and that sentence must respond to the nature of the offence, the manner of its execution, its social impact, and the rights of the victims and society. Though these authorities are of persuasive value only, they reinforce the same sentencing discipline:

the Court must be stern where the facts demand sternness, and mercy is warranted only where genuine mitigation exists.

Applying the above principles, the aggravating factors in the present case are as follows:

- (i) Three persons were murdered in one occurrence and a fourth person was injured. This was not a single impulsive act but a repeated assault upon multiple victims.
- (ii) The deceased were the petitioner's own son, daughter and minor grandson. The injured witness was also his son. The offence, therefore, involved an extreme breach of domestic trust.
- (iii) The occurrence took place inside the residential house at night. The home, which ought to have been a place of safety, was converted by the petitioner into a scene of multiple murders.
- (iv) One of the deceased was a minor child, Muhammad Madni. The killing of a child by a person standing in a position of familial authority and trust is a highly aggravating circumstance.
- (v) The petitioner fired repeatedly at different victims. He did not stop after the first shot, nor after the first casualty. The repetition of firing demonstrates persistence of intention and excludes the hypothesis of a momentary loss of control.
- (vi) The petitioner used a firearm, and the crime empties recovered from the spot were forensically matched with the pistol recovered on his disclosure. This circumstance strengthens the conclusion that the attack was deliberate and purposeful.
- (vii) The medical evidence shows firearm injuries on vital parts of the bodies of the deceased. The

nature and seat of injuries indicate intention to kill and not merely to frighten or injure.

- (viii) The petitioner fled from the place of occurrence after the incident. His conduct was inconsistent with innocence or spontaneous remorse.
- (ix) The prosecution case is supported by natural ocular witnesses, including an injured witness, and is corroborated by medical and forensic evidence. The case does not rest upon weak, doubtful or solitary evidence.
- (x) No circumstance of sudden provocation, sudden fight, grave emotional disturbance, mental incapacity, duress, youth, advanced age, uncertainty of fatal injury, or prolonged incarceration is borne out from the record.

15. The factors which may be pressed as mitigating circumstances are considered below:

- a. Motive was not specifically established.
- b. The witnesses are related to the deceased persons.
- c. There was a delay of about one hour and twenty five minutes in reporting the matter to the police.
- d. No independent witness from the locality was produced.
- e. The petitioner denied the recovery and pleaded false implication.

16. None of these factors, either individually or cumulatively, is sufficient to justify conversion of the sentence of death into imprisonment for life. The Court is required to give real and meaningful consideration to mitigation, but mitigation must be grounded in the record. A sentencing balance cannot be tilted by speculative mercy where the proved circumstances demonstrate repeated, deliberate and brutal killing.

17. As to factor (i), absence of motive may in an appropriate case assume significance at the stage of sentence, particularly where there is doubt about the genesis of the occurrence or where surrounding circumstances reduce moral culpability. It cannot, however, operate as an automatic rule of commutation. In the present case, the petitioner was identified by natural witnesses, including his own injured son. The occurrence took place inside the family house. The medical and forensic evidence corroborates the ocular account. The manner of occurrence,

namely repeated firing upon multiple family members including a minor child, itself demonstrates deliberation and extreme brutality. Absence of proved motive, therefore, does not constitute a mitigating circumstance of sufficient weight.

18. As to factor (ii), relationship of witnesses is not a weakness in the present case; rather, it explains their presence. The occurrence took place inside the family home during night hours. The wife, son and other family member were the most natural witnesses. The law does not discard truthful testimony merely because the witness is related. The decisive question is whether the testimony inspires confidence. In this case, it does.

19. As to factor (iii), the delay in lodging the report was minimal and sufficiently explained. Three persons had died at the spot, another had been injured, the occurrence took place at night, and the police station was ten miles away. The complainant was not expected to act with mechanical promptitude immediately after witnessing the murder of her children and grandchild. Such delay cannot be treated as a circumstance of consultation or fabrication.

20. As to factor (iv), non-production of independent witnesses from the locality is inconsequential where the inmates of the house were the most natural witnesses. The prosecution is required to produce trustworthy evidence, not a particular number or category of witnesses. In the peculiar facts of this case, independent locality evidence was not essential.

21. As to factor (v), denial of recovery is merely the defence plea. The forensic report independently connects the crime empties recovered from the place of occurrence with the pistol recovered pursuant to the petitioner's disclosure. The petitioner has failed to dislodge this incriminating circumstance.

22. The petitioner also cannot draw assistance from cases where sentence was reduced because the prosecution case suffered from doubt affecting the quantum of sentence. In **Mir Muhammad alias Miro v. The State** (2009 SCMR 1188), the ocular account qua co-accused had not been believed, motive remained unproved, recovery was inadmissible, and the accused was of advanced age with long incarceration. In **Mushtaq and others v. The State** (2012 SCMR 109), the accused had not admitted participation in the killing and had no personal motive. In **Muhammad Ilyas v. The State** (2009 SCMR 1042), the occurrence was treated as a sudden act. In **Iftikhar Mehmood and another v. Qaiser Iftikhar and others** (2011 SCMR 1165), compelling

circumstances arising from a religious altercation weighed with the Court. The present case is entirely distinguishable. It is based on direct evidence, supported by an injured witness, medical consistency and positive forensic corroboration. It is not a doubtful case, nor a case of diminished culpability.

23. We have also considered whether the period of custody may justify reduction of sentence. The petitioner was arrested soon after the occurrence in October 2019. His incarceration is nowhere near the threshold which, in appropriate cases, may invite consideration on the principle of expectancy of life. In any event, delay or custody is not an automatic ground for commutation in a case involving repeated, deliberate and brutal murders of multiple family members, including a minor child.

24. Through CrI. Misc. Application No.553 of 2026, material has also been placed before us regarding previous criminal involvement of the petitioner in other cases under different penal provisions, including sections 302 and 324, PPC. We do not consider it necessary to rest the sentence primarily upon such material, particularly where mere involvement, unless ripened into conviction, must be approached with caution. Even if the said material is kept out of consideration altogether, the circumstances of the present offence are independently sufficient to sustain the sentence of death. At the very least, the petitioner cannot claim any affirmative mitigation on the premise of a demonstrated unblemished antecedent record.

25. The present case, therefore, falls within the narrow category where imprisonment for life would be wholly inadequate, since it is a case which is rarest of rare. The petitioner did not kill a stranger in a sudden quarrel. He opened fire upon his own family members in their house, killed three persons including a minor child, and injured another son. The act was brutal, repeated, cold-blooded and destructive of the most basic familial trust. It shocks not only the conscience of the bereaved family but also the conscience of justice. No circumstance exists to justify reducing the sentence.

26. We have also examined whether leave should be granted for reappraisal of evidence. The concurrent findings of the two Courts below are based upon natural ocular evidence, an injured witness, medical consistency and positive forensic corroboration. No material contradiction, legal infirmity, misreading or non-reading of evidence has been pointed out. The High Court considered the delay, relationship of witnesses, absence of motive, medical evidence, forensic evidence and

the question of sentence. Its conclusion is neither arbitrary nor perverse.

27. For the foregoing reasons, we are satisfied that the prosecution has proved its case against the petitioner beyond reasonable doubt. No mitigating or extenuating circumstance has been established which may justify conversion of the sentence of death into imprisonment for life. The aggravating circumstances decisively outweigh the mitigating circumstances. The conviction and sentences awarded to the petitioner, including the sentence of death on three counts under section 302(b), PPC, are maintained. Consequently, leave is refused. This jail petition is dismissed.

Judge

Judge

Judge

Islamabad
13.05.2026
M. Saeed /Subhan

Approved for reporting.